

19LBCV00211 19LBCV00211

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-07-21

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Case Number: 19LBCV00211 Hearing Date: July 21, 2026 Dept: S27

1. Background

Facts

Plaintiff, Hillbrook Home Owners'

Association, Inc. filed this action against Defendant, Tara Eatman on 4/02/19

for breach of contract arising out of Defendant's alleged failure to pay HOA

dues. The parties settled the case, but

Defendant failed to pay per the terms of the parties' settlement, which

resulted in entry of judgment on 7/22/20.

The judgment is in the amount of \$28,307.70. Since that time, additional amounts have been added to the judgment for fees and costs.

Accounting for payments made by Defendant, the current amount due and owing is \$27,592.08, and interest continues to accrue.

2. Application

for Sale of Dwelling

Governing Law

CCP §704.750 provides:

(a) Promptly after a dwelling is levied upon (other than a dwelling described in subdivision (b) of Section 704.740), the levying officer shall serve notice on the judgment creditor that the levy has been made and that the property will be released unless the judgment creditor complies with the requirements of this section. Service shall be made personally or by mail. Within 20 days after service of the notice, the judgment creditor shall apply to the court for an order for sale of the dwelling and

shall file a copy of the application with the levying officer. If the judgment creditor does not file the copy of the application for an order for sale of the dwelling within the allowed time, the levying officer shall release the dwelling.

(b) If the dwelling is located in a county other than the county where the judgment was entered:

(1) The judgment creditor shall apply to the superior court of the county where the dwelling is located.

(2) The judgment creditor shall file with the application an abstract of judgment in the form prescribed by Section 674 or, in the case of a judgment described in Section 697.320, a certified copy of the judgment.

(3) The judgment creditor shall pay the filing fee for a motion as provided in subdivision (a) of Section 70617 of the Government Code.

CCP §704.760 provides:

The judgment creditor's application shall be made under oath, shall describe the dwelling, and shall contain all of the following:

(a) A statement whether or not the records of the county tax assessor indicate that there is a current homeowner's exemption or disabled veteran's exemption for the dwelling and the person or persons who claimed any such exemption.

(b) A statement, which may be based on information and belief, whether the dwelling is a homestead and the amount of the homestead exemption, if any, and a statement whether or not the records of the county recorder indicate that a homestead declaration under Article 5 (commencing with Section 704.910) that describes the dwelling has been recorded by the judgment debtor or the spouse of the judgment debtor.

(c) A statement of the amount of any liens or encumbrances on the dwelling, the name of each person having a

lien or encumbrance on the dwelling, and the address of such person used by the county recorder for the return of the instrument creating such person's lien or encumbrance after recording.

CCP §704.770 provides:

(a) Upon the filing of the application by the judgment creditor, the court shall set a time and place for hearing and order the judgment debtor to show cause why an order for sale should not be made in accordance with the application. The time set for hearing shall be not later than 45 days after the application is filed or such later time as the court orders upon a showing of good cause.

(b) Not later than 30 days before the time set for hearing, the judgment creditor shall do both of the following:

(1) Serve on the judgment debtor a copy of the order to show cause, a copy of the application of the judgment creditor, and a copy of the notice of the hearing in the form prescribed by the Judicial Council. Service shall be made personally or by mail.

(2) Personally serve a copy of each document listed in paragraph (1) on an occupant of the dwelling or, if there is no occupant present at the time service is attempted, post a copy of each document in a conspicuous place at the dwelling."

Analysis

Judgment Creditor's application is accompanied by the Declaration of James A. Judge, who is acting as Judgment Creditor's attorney in this matter.

Judge's declaration provides all details required per §704.760. He declares there is no homestead exemption recorded (¶8) and lists the senior liens and encumbrances on the property (¶9).

As required per §704.770, the Court sets an OSC re: sale of dwelling for September 2, 2026 at 8:30 a.m. Judgment Creditor must serve Judgment Debtor per the above authority.

Judgment Creditor is ordered to give notice.